5. Social policy and environmental policy: comparing modes of governance

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1 INTRODUCTION

The European Union (EU) is a highly sectorized polity. The different policy areas are marked by a wide variety of legislative procedures, constellations of actors and policy instruments. To grasp the logic of policy-making in the EU, we thus need a toolkit to understand the differences and similarities between policy areas. The concepts of governance and modes of governance are useful instruments for arriving at this understanding. In this chapter, we use these conceptual tools to analyse the emergence and evolution of modes of governance in EU social policy and EU environmental policy. We use the term 'governance' in a broad sense as structures of societal coordination and control in order to encompass both developments in the policy areas concerned and differences between the two policy areas within one concept. However, a broad conception of governance covering the structures of the whole process of policy-making adds to the complexity and easily loses the organizing and structuring function of the concept. We therefore disentangle the concept into three dimensions: (1) the way in which societal interests are incorporated into the initiation, formulation and adoption of policies (interest intermediation); (2) the institutional rules determining who is entitled to take part in decision-making and how decisions are taken (modes of interaction); and (3) the way in which agreed policy objectives are implemented (policy instruments).

The two policy areas have been chosen for analytical reasons. EU social policy and EU environmental policy are suitable for a comparative analysis because they constitute similar cases. First, both policy areas are primarily characterized by regulatory policy, which seeks to promote the public interest by constraining private activities (Francis, 1993: 1–2). Second, the dominant mode of integration in both policy areas is market-correcting positive integration. In other words, the goal is not to remove obstacles

to trade and economic competition, but to reconstruct economic regulation at a higher level of governance (Hix, 2005: 251–60). The fact that the two policy areas are thus broadly similar in terms of their basic rationales makes it easier to identify causal conditions that might account for differences in the modes of governance prevalent in the two fields.

The chapter proceeds as follows. Section 2 draws up an analytical scheme to show the three dimensions of governance: interest intermediation, modes of interaction, and policy instruments. Section 3 addresses the emergence and evolution of governance modes in EU social policy, while section 4 deals with EU environmental policy. The final section gives a comparative overview of the emergence and evolution of modes of governance in the two policy areas and discusses which factors account for the different dynamics, and the differences in resulting governing modes, in both policy areas.

2 MODES OF GOVERNANCE

The term 'governance' means many things to many people. In a recent article which formed the introduction to a symposium on European governance in the *Journal of European Public Policy*, Caporaso and Wittenbrinck (2006: 471) stated that '[i]ronically, to understand the new modes of governance, the term "governance" is not a good place to start, since it has meant too many things'. This statement echoes a similar assessment R.A.W. Rhodes (1997: 15) made a decade ago: '[governance] has too many meanings to be useful'. Despite this conceptual ambiguity, or maybe even as a result of it, the term enjoys great popularity in the literature and the authors just mentioned do not abandon it either. At a general level, governance can be conceived as societal steering and coordination or, in the words of Pierre and Peters (2005: 6), it refers to 'the nature of state–society relationships in the pursuit of collective interests'. Beyond this basic understanding, however, the multivalent universe of governance begins. Some authors conceive governance primarily in terms of the relationship between public and private actors in the process of policy formation (Rhodes, 1997; Eising and Kohler-Koch, 1999). Others argue that governance refers to systems of rules that shape the interactions of social actors in policy-making (Rosenau, 1992; Mayntz, 2004). A further strand of the literature conceptualizes governance as a 'mode of political steering' (Héritier, 2002: 185; see also Knill and Lenschow, 2003), referring to the way in which policy goals, once they have been agreed, are put into practice.

In our view, governance encompasses all these understandings. To avoid conceptual confusion, however, the different dimensions of governance

need to be disentangled and treated separately. Our conceptualization of governance and modes of governance thus rests on the following three dimensions: (1) governance as forms of interest intermediation; (2) governance as institutional modes of interaction; and (3) governance as different types of policy instruments.

Forms of *interest intermediation* describe the way in which societal interests are incorporated into the process of policy-making. They account for the relationship between public and private actors, including power relations and mutual dependence on resources. In democratic countries the political process consists of the interaction both between political elites and between citizens and those elites. The actors involved in this process have particular interests, preferences, opinions and beliefs, as well as different resources in order to participate in the formation of public policies. Citizens and groups of citizens participate in the political process in various ways by feeding their interests into the political system. Citizens take part in democratic elections, political parties recruit members of parliament and governments, and associations represent the interests of sections of society such as employers and employees, as well as diffuse societal interests such as environmental or consumer protection. In different political systems and different sectors, different styles of interest intermediation have developed.

The literature usually distinguishes two main types of interest intermediation: pluralism and corporatism. In *pluralism* societal groups interact in a non-hierarchical competition in order to get their interests reflected in public policies. These groups are founded on a voluntary basis. State authorities do not intervene in the organization of societal groups and they also do not guarantee privileges for certain groups (Truman, 1951; Dahl, 1961). In *corporatism*, the state grants privileged access to a limited number of – typically strong, hierarchically organized – associations. As a reciprocal gesture, associations support agreements with the government and other associations vis-à-vis their members (Schmitter, 1974). A further form of interest intermediation is represented by *policy networks*. Policy networks denote a horizontal constellation of interdependent actors. Actors in policy networks are systematically interlinked but there is no hierarchical subordination. Corporatist arrangements can be considered as a specific type of policy network. However, policy networks are also represented by loose issue networks, which have more similarities with pluralist interest intermediation (Kenis and Schneider, 1991).

When policy proposals are discussed during the stage of policy formation and adopted or rejected at the end of that stage, the *mode of interaction* affects the scope and content of the resulting policy outputs. Modes of interaction are institutional arrangements that shape the constellation

of actors and specify the decision rules under which policy outputs are adopted. They determine the degree of autonomy of individual actors on the one hand and the capability of collective action on the other. Mayntz and Scharpf (1995: 60–62; see also Scharpf, 1997: 46–7) identify four modes of interaction: unilateral action, negotiated agreement, majority vote, and hierarchical direction. In unilateral action, actors choose among political alternatives without coordinating their actions with other actors. In negotiated agreement, actors unanimously agree on common courses of action. The agreements may be of different degrees of permanence and may be obligatory upon actors to different degrees. In majority vote, the majority of the actors adopt decisions that also apply to those actors who have voted against them. In hierarchical direction, finally, a single actor possesses the power to make collectively binding decisions and to employ collective resources.

As far as the EU is concerned, modes of interaction specify the interaction between the member states and between the member states and the political institutions of the EU. When policy outputs are adopted at the European level, three modes of interaction are relevant: negotiated agreement, majority vote and hierarchical direction. (Unilateral action describes the situation of member state competition in the absence of EU-wide regulation, as in the field of tax policy.) In the EU context, these modes of interaction have been dubbed, respectively, intergovernmental negotiation, joint decision-making and supranational centralization (Scharpf, 2001, 2006a: 847–54; Bulmer and Padgett, 2005). The modes of interaction prevalent in a particular policy area mainly depend on the provisions made in the treaties. If the treaties give member state governments exclusive competence to determine, unanimously, the direction of common action, without the Commission or the European Parliament playing a decisive role in decision-making, the interaction mode is *intergovernmental negotiation*. The same mode prevails in the First Pillar in all those areas where decisions in the Council have to be taken by unanimous agreement. Although the supranational institutions have a more prominent role to play here, the member state governments still form the centre of decision-making. If one of them objects to common action, no European policy can be adopted. *Joint decision-making* applies if policies depend on the Commission's exclusive right of initiative, the Council's agreement by majority and, increasingly, an affirmative vote by the European Parliament.[1] Finally, *supranational centralization* occurs if the competence to make collectively binding decisions is delegated to an autonomous agency or the EC Treaty sets down policy goals which are directly applicable in the member states, and may thus be enforced directly by the Commission and the European Court of Justice (ECJ).

After European policy outputs are adopted, they have to be implemented in the member states in order to be effective. *Policy instruments* are means at the disposal of the political actors in order to implement policy goals contained in policy outputs (Howlett, 1991: 2). In the multi-level governance system of the EU, the legal form of policy instruments crucially affects the relationship between the political institutions of the EU and the member states. In this chapter, therefore, we concentrate on the *legal form* of policy instruments. The available legal instruments in the EU are regulations, directives, recommendations, resolutions, declarations and conclusions. Regulations exert a direct legal effect in the member states. Directives have to be transposed into national law. Both regulations and directives are *hard law*, which legally obliges member states to do what is laid down in a given piece of legislation. Recommendations, resolutions, declarations and conclusions, in contrast, represent *soft law*. Soft law consists of rules of conduct that may have a certain legal effect but do not have any legally binding force. There are, however, further legal forms of European policy outputs which do not have a general regulatory intention. Decisions are hard law but refer only to single member states or citizens and are not relevant to the policy of the entire EU. Communications are soft law but set out the policy position of the Commission on a particular problem. They appear under different headings, as green papers, white papers, reports, strategies or communications, and play a mere declaratory role (Senden, 2004; Bogdandy et al., 2004).

The following two sections deal with the emergence and evolution of modes of governance in EU social policy and EU environmental policy, respectively. Modes of governance in the two policy areas are analysed in the dimensions of interest intermediation, modes of interaction, and policy instruments. Interest intermediation and modes of interaction are described on the basis of the secondary literature and primary sources. Our analysis of the evolution of legal acts is based on data from the Celex and Eur-Lex databases.

To be sure, conducting such a quantitative analysis involves a number of methodological problems. In particular, the substantive importance of different legal acts cannot be taken into account. Laws with a broad field of application and far-reaching regulatory implications in many member states, such as the directives on working time or drinking water, are given the same weight as narrowly circumscribed measures with only minor impact at the domestic level, such as directives on individual types of machines or measures that merely update or slightly revise prior directives. An analysis that compares two policy areas and covers several decades cannot avoid distortions of this type. At any rate, analysing the

regulatory contents, and the domestic policy impacts, of several hundred legal acts would have exceeded the resources available to us. To reduce the problem, our analysis distinguishes 'original' pieces of legislation from directives and regulations that merely amend existing legal acts, extend their scope or provide application rules. Furthermore, we are confident that the remaining distortions do not invalidate our analysis. After all, we are primarily interested in comparing policy outputs in two policy areas. There is little reason to believe that the bias resulting from the varying importance of different legal acts differs systematically between our two policy areas. Only such a systematic bias would imply serious problems for our analysis here.

3 MODES OF GOVERNANCE IN EU SOCIAL POLICY

Interest Intermediation in EU Social Policy

Interest intermediation in EU social policy evolved from a type of network governance into a mixture of network governance and a quasi-corporatist governing mode (Falkner, 1999). While the ultimate power to adopt social policy proposals traditionally lay firmly in the hands of member state governments, in the early 1970s trade unions and employers' associations had already been given the opportunity to participate actively in the process of policy formation. In 1974, the first of a series of tripartite conferences brought together representatives of the Council, the Commission, and labour and capital on both the national and the European level. Due to employer opposition, however, these conferences remained talking shops, and there were no tangible results, which is why the unions finally pulled out of the talks (Gorges, 1996: 130). In the mid-1980s, Jacques Delors as President of the Commission started a new initiative to institutionalize corporatist governing modes in EU social policy by launching the so-called 'Val-Duchesse social dialogue' between the European umbrella organizations of labour and capital.

However, it was only the Social Protocol of the 1992 Maastricht Treaty that finally paved the way for the creation of a corporatist mode of interest intermediation in EU social policy. According to the new procedures laid down in the Protocol, the Commission has a legal obligation to consult both sides of industry twice before submitting proposals in the social policy field. Management and labour may, on the occasion of such consultation, inform the Commission of their wish to initiate negotiations in order to reach a collective agreement on the matter in question. This

would bring conventional decision-making to a standstill for at least nine months. Such agreements can, at the joint request of their signatories, be incorporated in a directive, which transforms the social partner text into binding EU legislation to be implemented by the member states. Alternatively, the signatory parties may also take care of the implementation of their agreements through their own member organizations. Since Maastricht, the EU-level social partners have thus become formal participants in the making of social policy legislation. In fact, the new procedure fits the classic formula for corporatist concertation, that is, 'a mode of policy formation in which formally designated interest associations are incorporated within the process of authoritative decision-making and implementation' (Schmitter, 1981: 295). Since the Amsterdam Treaty revisions of 1997, this corporatist 'bargained legislation' procedure has formed part of the EC Treaty (Falkner, 1998, 1999; Treib and Falkner, 2009).

Although the new bargaining track has been used successfully several times, traditional policy formation through the Council, the Commission and the European Parliament was not replaced by this new social partner procedure. Instead, policy networks in the legislative arena and corporatism in the social partner arena coexist and even influence each other (for an overview, see Falkner, 2000; Treib and Falkner, 2009). Given the general scepticism of employers' organizations towards Europe-wide social standards, the most important factor determining whether the Europe-wide umbrella associations of management and labour choose the bargaining track is the likelihood of legislation if negotiations do not take place. There is no doubt that, so far, social partner negotiations on social policy measures at the EU level have taken place 'in the shadow of the law' (Bercusson, 1992: 185). There are many indicators that a high probability of Council action on a matter represents a spur for employers' associations to look actively for a compromise with trade unions. If governments and the Commission put pressure on management by expressing their readiness to otherwise adopt social regulation themselves, the employers are visibly and admittedly more ready for compromise. Just as at the national level, corporatist negotiations thus need some backing from public authorities. Moreover, the possible scope of collective bargaining at the European level is limited as not all issues are considered suitable for collective bargaining by the social partner organizations. If a proposal does not belong to the issue areas that are frequently subject to collective bargaining at the domestic level, the EU-level social partners are unlikely to enter into negotiations on that issue. This has been demonstrated by several cases where both sides of industry refused to enter into negotiations for exactly these reasons.

Despite the availability of a corporatist bargaining track, network governance is thus still the dominant mode of interest intermediation in EU social policy. Since the Maastricht Treaty, only three social partner agreements have actually been transformed into legally binding directives. Recently, the social partners reached two further agreements, on telework (2002) and on work-related stress (2004). However, they did not request the incorporation of these accords into binding legislation, but decided to implement them through their own member organizations. However, given the heterogeneity of interests among both sides of industry in many countries and the lack of hierarchical oversight of the European associations, it is questionable whether the two agreements will have much of an impact at the domestic level. The remaining social policy initiatives were adopted on the basis of the traditional law-making procedure. In quantitative terms, therefore, network governance is much more important than the corporatist mode of interest intermediation in EU social policy.

Modes of Interaction in EU Social Policy

Whether political and societal actors succeed in influencing the adoption of policy outputs in accordance with their interest depends to a great extent on the mode of interaction. The treaty provides legal competences for EU regulation and decision rules for adopting such regulation. Both treaty-based competences and decision rules determine the mode of interaction and affect actors' opportunity to shape a policy output. The mode of interaction in EU social policy, operationalized by the treaty-based competences and the decision rules, has been subject to changes since the European Economic Community (EEC) was established. The original EEC Treaty provided for legislative competence with regard to the free movement of workers and social security coordination. Only policy measures relating to the free movement of workers could be passed by qualified majority voting (QMV). Moreover, policy measures could only be adopted if they were related to the Common Market.[2] Those measures were subject to intergovernmental negotiations and required unanimity in the Council in order to be adopted. However, further treaty amendments extended joint decision-making to further issue areas allowing the adoption of policy outputs by QMV. The changes are shown in Table 5.1.

Traditionally, most decisions in the area of EU social policy had to be taken on the basis of unanimity in the Council. As a result of successive treaty amendments, the areas characterized by the interaction mode 'intergovernmental negotiation' are nowadays restricted to anti-discrimination,

Table 5.1 Treaty-based competences and decision rules in EU social policy

Explicit Community competence for:	EEC Treaty 1957	Single European Act 1986	Maastricht Social Agreement 1992	Amsterdam Treaty 1997	Nice Treaty 2001
'measures' to improve transnational cooperation under Art. 137	–	–	–	–	++
'incentive measures' to combat discrimination as defined by Art. 13	–	–	–	–	++
action against discrimination on grounds of sex, race, ethnic origin, belief, disability, age, sexual orientation (new Art. 13)	–	–	–	+	+
'measures' combating social exclusion	–	–	–	++	++
'measures' assuring equal opportunities and treatment of both women and men	–	–	–	++	++
employment policy coordination	–	–	–	++	++
funding for employment policy	–	–	+	+	–
social security and protection of workers	–	–	+	+	+
protection of workers where employment contract is terminated	–	–	+	+	+
collective interest representation, co-determination	–	–	+	+	+
employment of third-country nationals	–	–	+	+	+
working conditions (general)	–	–	++	++	++
worker information and consultation	–	–	++	++	++
gender equality for labour force	–	–	++	++	++
integration in labour market	–	–	++	++	++
working environment (health and safety)	–	++	++	++	++
social security coordination	+	+	no impact	+	+
free movement of workers	++	++	no impact	++	++

Notes:
– Not mentioned.
+ Decision by unanimity.
++ Decision by qualified majority.

Source: Falkner (2006: 81).

collective interest representation and co-determination, social security and protection of workers, and funding for employment policy (Falkner, 2006: 80–82). In contrast, many social policy measures may now be adopted on the basis of the co-decision procedure, with QMV in the Council and the European Parliament acting as co-legislator. The fields covered by the joint-decision mode in EU social policy include health and safety in the workplace and working conditions in general, information for and consultation of workers, the integration of persons excluded from the labour market, and equal treatment of women and men with regard to labour market opportunities and treatment at work. The joint-decision mode also applies to those social policy measures that contribute to the completion of the Common Market and are passed on the basis of Article 94 of the EC Treaty.

Further areas where decision-making is based on the joint-decision mode, with the Council deciding on the basis of QMV, include employment policy, social exclusion, the modernization of social protection systems and incentives to combat discrimination. In these issue areas, however, the Community may not adopt binding legislation but may act only on the basis of soft law, for example, in the European Employment Strategy or in the open method of coordination (OMC) on pensions or on social inclusion. Thus, the core of national welfare states, which consists of social security systems set up to tackle the risks related to ageing, illness, invalidity, unemployment and poverty, is only affected by soft, non-binding EU policies. Furthermore, a number of particularly contentious areas of industrial relations are explicitly excluded from any European intervention. These include the right to strike or to impose lockouts, the right of association and the determination of wages and salaries.

There is no agency to which regulatory powers are delegated in the area of EU social policy. There are three European agencies that broadly belong to the field of social policy: the European Foundation for the Improvement of Living and Working Conditions, in Dublin, the European Agency for Safety and Health at Work, in Bilbao, and the European Agency for Fundamental Rights, in Vienna. These agencies do not, however, possess any 'real' decision-making powers. Rather than making binding decisions, the primary aim of these agencies is to collect and disseminate information and to foster cooperation between stakeholders in their particular fields of activity (Griller and Orator, 2006).

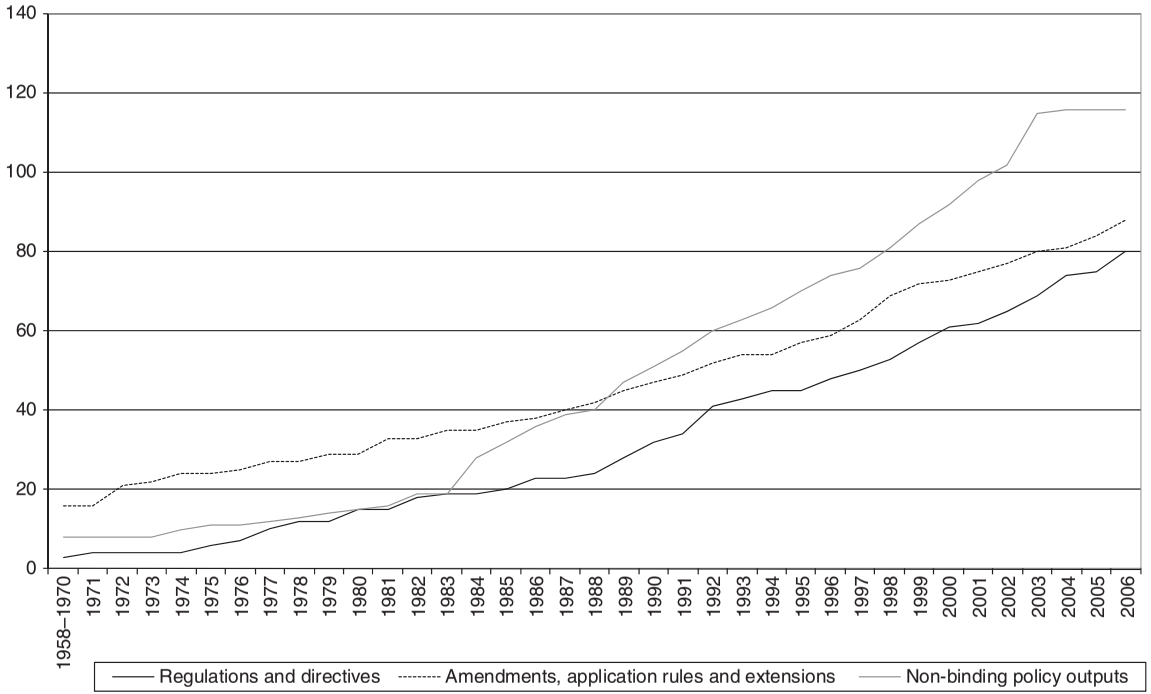
In contrast to these agencies, elements of supranational centralization are to be discerned in the independent interpretation of Community law by the European Court of Justice. The Court has proved to be rather active in interpreting (and often expanding) the social policy principles enshrined

in the treaties as well as in secondary Community legislation. Judicial activism has been particularly pronounced in the field of gender equality. On the basis of expansive interpretations of the principle of equal pay for women and men, which was laid down in the 1957 Treaty of Rome, and of a number of gender equality directives adopted in the 1970s and 1980s, the Court has thus actively contributed to the EU's gender equality policy (for an overview, see Shaw 2001).

Legal Instruments in EU Social Policy

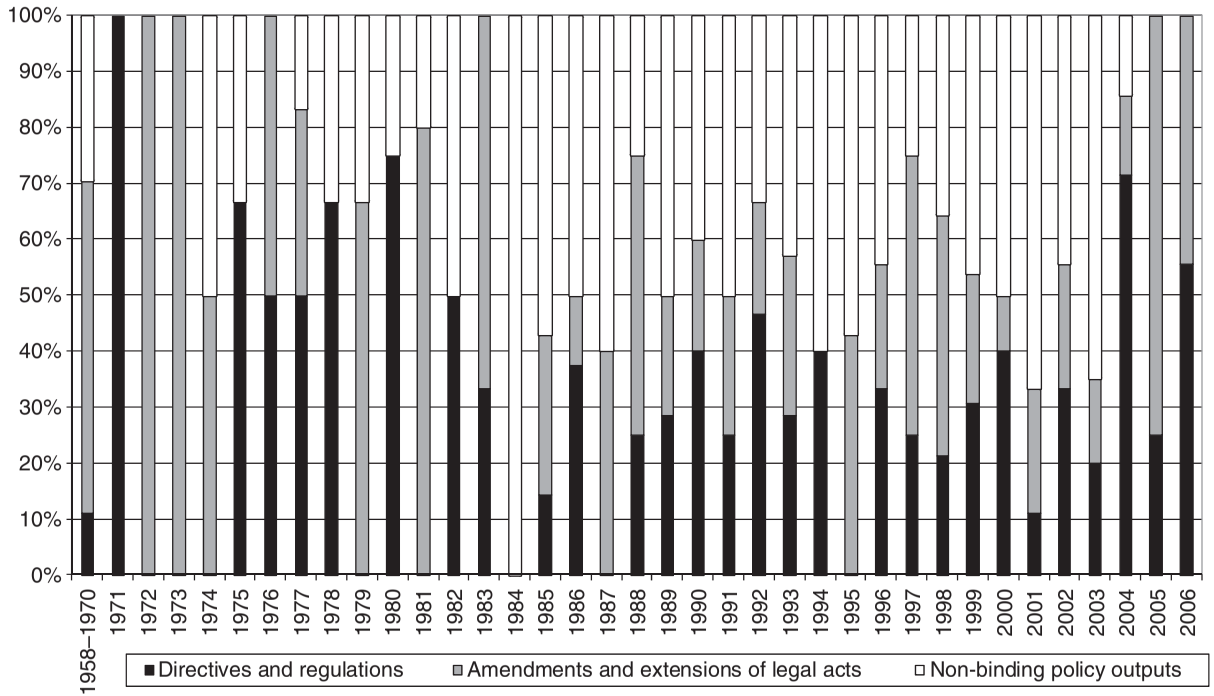
The modes of interaction described in the previous section determine which legal instruments may be adopted at the European level and how their adoption takes place. In overall terms, 284 policy outputs were passed in EU social policy between 1958 and 2006. The first legal act of EU social policy was a regulation adopted in 1958. It referred to the social security of migrant workers and was amended several times in the years that followed. The first non-binding policy output was passed in 1963. Between 1958 and 2006 the amount of both hard law and soft law increased steadily. The evolution of legal instruments in EU social policy is shown in Figure 5.1. At no point in this period did the number of newly adopted directives and regulations exceed the number of non-binding policy outputs. Moreover, the number of amendments, application rules and extensions was always larger than the number of new regulations and directives. Hard law exceeds soft law only if directives and regulations and their amendments, applications rules and extensions are added together. In this case, hard law and soft law show a quantitative evolution that runs in parallel. The increase in the volume of soft law accelerated in the early 1980s and slowed down at the beginning of the twenty-first century. Soft law thus plays a considerable role in EU social policy, although it does not supersede hard law.

The observation that EU social policy is marked by both hard and soft law is also confirmed when we consider the comparative shares of the different types of legal instruments in EU social policy year by year, which is shown in Figure 5.2. In the 1970s and the early 1980s hard law prevailed, accounting for the largest share of policy outputs adopted each year. However, in the following years the share of soft law increased. In several years, more than half of the policy outputs were adopted in the form of soft law. Directives and regulations accounted for more than half of the policy outputs only in 2004 and 2006, when the adoption of soft law stagnated. Amendments, application rules and extensions of existing hard law make up a considerable proportion of hard law during the whole period.



Source: Binding legal acts: Celex > menu search > legislation > directives/regulations, not restricted to legislation in force, classification headings > 5 freedom of movement for workers and social policy > 5.10 freedom of movement for workers / 5.20 social policy, without wrong classifications; non-binding legal acts: Eur-Lex > simple search > legislation > other acts, not restricted to acts in force, classification headings > 5 freedom of movement for workers and social policy > 5.10 freedom of movement for workers / 5.20 social policy, counted are declarations, conclusions, resolutions, and recommendations, without wrong classifications. The non-binding legal acts were collected on the basis of Eur-Lex because it is not possible to search for other legal acts than decisions, directives or regulations via the Celex menu search. Celex and Eur-Lex use the same database and classification.

Figure 5.1 Evolution of legal instruments in EU social policy, 1970–2006



Source: As Figure 5.1.

Figure 5.2 Comparative shares of different legal instruments in EU social policy, 1970–2006

4 MODES OF GOVERNANCE IN EU ENVIRONMENTAL POLICY

Interest Intermediation in EU Environmental Policy

When environmental policy emerged as a separate policy area at the European level in the 1970s, it offered no distinct type of interest intermediation. However, since the mid-1980s interest intermediation has increasingly taken the form of policy networks. The emergence of policy networks was spurred by the principle of horizontal environmental policy integration laid down in different Environmental Action Programmes and in the EC Treaty. In particular the Fifth Environmental Action Programme (1993–2000) put great emphasis on horizontal environmental policy integration, and the 1986 Single European Act established a legal basis for the realization of this principle (new Art. 6 of the EC Treaty). The principle of horizontal environmental policy integration states that measures in other policy areas must take environmental concerns into account. Several dialogue groups were set up composed of both public and private actors from different policy areas such as agriculture, consumer protection, the environment and industry. Furthermore, the Commission integrated societal actors into the process of policy-making to a larger extent. In addition to funding for environmental NGOs, the Commission increasingly met with civil society representatives and created forums for consultation and cooperation and a facilitated exchange of information (Lenschow, 1999: 44–48).

Policy networks have thus come to be the dominant type of interest intermediation in EU environmental policy. However, there are also characteristics of pluralism and corporatism in environmental policy. Despite the existence of an umbrella organization of national and sectoral environmental associations (the European Environmental Bureau), interactions of environmental interest groups display properties of pluralism. There are various environmental groups engaged in policy formulation at the European level. They are rooted in different cultural and political traditions and often compete with one another. Furthermore, employers' associations also have strong interests in environmental policy because environmental standards may impose costs on business. In contrast to social policy, however, there is no institutionalized process along the lines of social dialogue to settle conflicts between environmental concerns and the interests of capital. Nevertheless, there are also traces of corporatism in EU environmental policy. When the directive on the conservation of natural habitats and of wild fauna and flora was formulated, for example, the Commission gave privileged access to two environmental

organizations, the Royal Society for the Protection of Birds and the World Wildlife Fund, in order to cope with the wide variety of input by environmental interest associations. The two organizations coordinated and 'bundled up' the interests of environmental groups throughout Europe (Eichener, 2000: 285–6).

Modes of Interaction in EU Environmental Policy

In EU environmental policy, political and societal actors thus struggle for political power and aim to solve policy problems mostly within policy networks. Whether decisions are taken and which policy goals are adopted, however, depend on the mode of interaction. Both EU competences and decision rules are specified by the treaties. The evolution of treaty-based competences and decision rules in EU environmental policy is presented in Table 5.2. The original EEC Treaty did not provide explicitly for competences in environmental policy. European environmental measures could only be taken on the basis of the subsidiary competence provisions of the treaties, which allowed for Community action that was necessary in order to complete the internal market or that seemed necessary to attain the general goals of the Community. Those measures had to be decided by unanimity.

In 1986, the Single European Act introduced the legal basis for the adoption of legislation that seeks to protect the natural environment, and it changed the decision rules. Thereafter, policy outputs that affect the Common Market could be passed by QMV whereas policy outputs which were adopted solely to protect the environment required unanimity. The Maastricht Treaty, which came into force in 1992, extended QMV to almost all environmental measures, regardless of whether they affect the Common Market or not. Hence, joint decision-making became the predominant governing mode in EU environmental policy. There are only a few exceptions that are still subject to unanimous decision-making. Policies are formulated in the mode of intergovernmental negotiation if measures concern fiscal provisions or affect town and country planning, the quantitative management of water resources, or land use not related to waste management. Finally, those measures which affect the mix of energy supply from different sources in the member states remain subject to unanimous decisions (Krämer, 2003: 72–84; Knill, 2003: 28–36).

Supranational centralization is of minor relevance in EU environmental policies. In 1994, the European Environmental Agency was founded. However, in contrast to the Environmental Protection Agency in the USA, which has legislative and executive powers, the European Environmental Agency's functions are restricted to collecting and analysing information.

Table 5.2 Treaty-based competences and decision rules in EU environmental policy

Explicit Community competence for:	EEC Treaty 1957	Single European Act 1986	Maastricht Treaty 1992	Amsterdam Treaty 1997	Nice Treaty 2001
environmental measures which contribute to the completion of the internal market	–	++	++	++	++
environmental measures which are exclusively directed to protect the environment	–	+	++ (five exceptions, see below)	++ (five exceptions, see below)	++ (five exceptions, see below)
provisions primarily of a fiscal nature	–	+	+	+	+
measures affecting town and country planning	–	+	+	+	+
measures affecting quantitative management of water resources or affecting, directly or indirectly, the availability of those resources	–	+	+	+	+
measures affecting land use, with exception of waste management	–	+	+	+	+
measures significantly affecting a member state's choice between different energy sources and the general structure of its energy supply	–	+	+	+	+

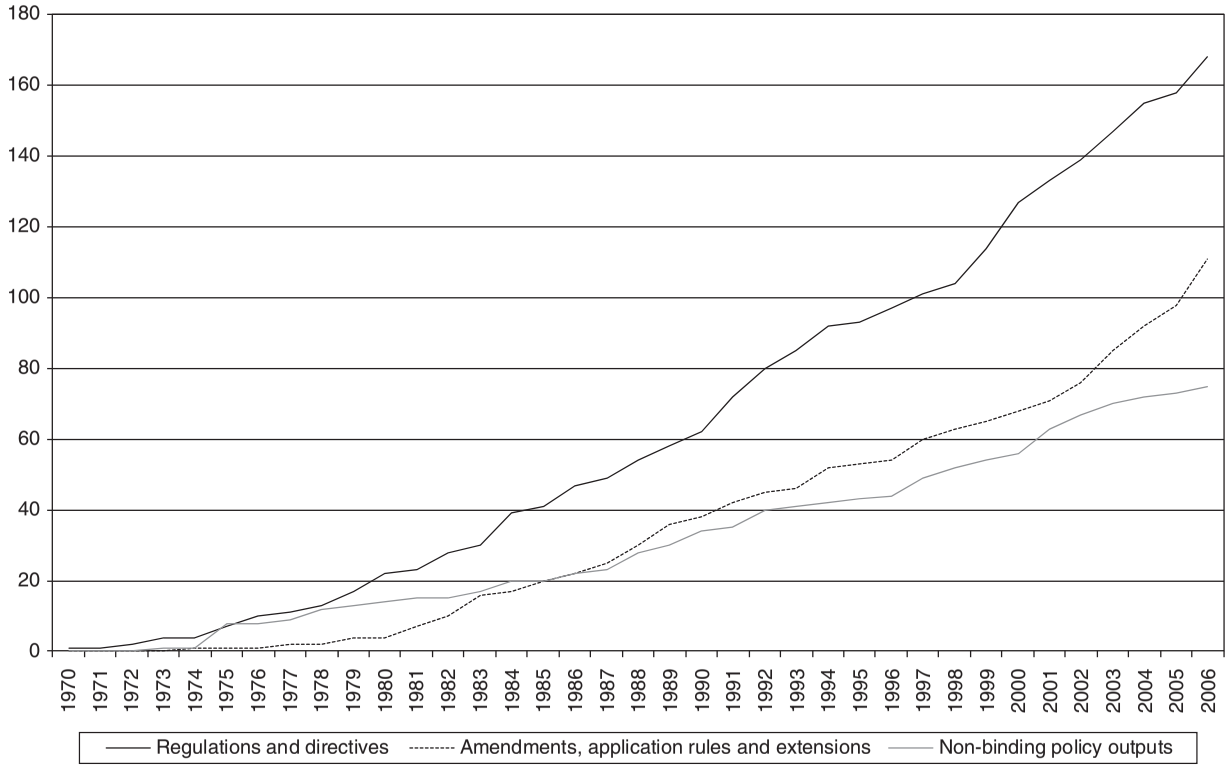
Notes:
– Not mentioned.
+ Decision by unanimity.
++ Decision by qualified majority.

It does not have any regulative competences. The European Court of Justice is not directly involved in adopting environmental policy outputs but its interpretations of the treaty's competence clauses had a certain impact on policy formation in environmental policy. This was particularly important before the Single European Act, when there was no explicit legal competence to adopt EU environmental legislation. The ECJ repeatedly confirmed that environmental legislation could be passed on the basis of two clauses that allowed Community action deemed necessary for the effective functioning of the Common Market or for the achievement of the Community's general objectives (now enshrined in Arts 94 and 308 of the EC Treaty; see Knill, 2003: 98–101). Albeit not directly involved in policy formulation, rulings of the ECJ also affected the relative weight of economic and environmental principles in the EU's activities. In cases based on Article 28 of the EC Treaty, which prohibits quantitative restrictions on imports, the Court, under certain conditions, considered environmental aims to be relevant to justifying restrictions on trade (Notaro and Poli, 2002: 503–509).

Legal Instruments in EU Environmental Policy

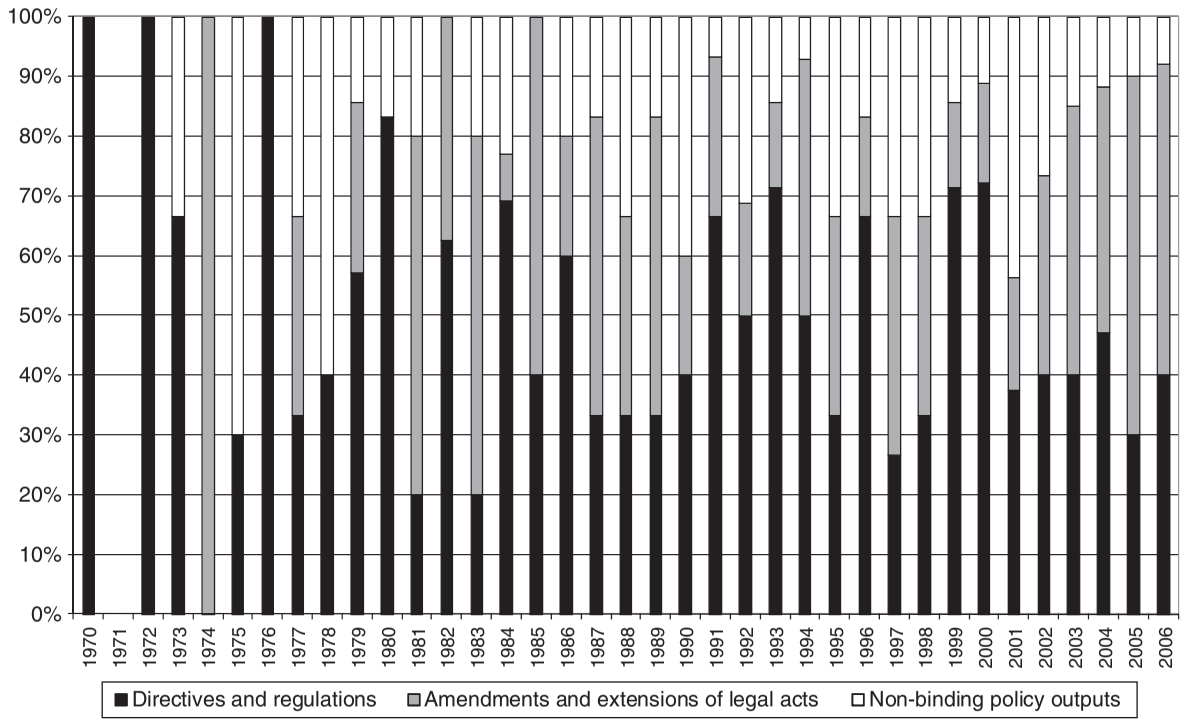
As in EU social policy, the legal instruments in EU environmental policy consist of both hard law and soft law. However, hard law measures outnumber soft law by far in the environmental field. Figure 5.3 shows the evolution of legal instruments in EU environmental policy. Between 1970 and 2006, 168 directives and regulations were adopted. In addition, 111 amendments, extensions and application rules, which also have the form of hard law, were passed. During the same period, recommendations, resolutions, declarations and conclusions add up to a total of 75. Only in 1975 did the number of non-binding policy outputs exceed the number of directives and regulations in force. While the volume of both hard law and soft law has increased since the emergence of the policy area, directives and regulations increased to a far greater extent than non-binding policy outputs. This result also holds if amendments, extensions and application rules of legal acts are neglected. If they are taken into account the gap between hard law and soft law widens further.

The dominance of hard law in EU environmental policy is also confirmed by the shares of the different types of legal instruments, which are shown in Figure 5.4. At the beginning of the 1970s, directives and regulations prevailed. In the following years, amendments, extensions and application rules as well as non-binding policy outputs became a firm component of EU environmental policy. However, newly adopted directives and regulations remained salient in quantitative terms. In several years



Source: Binding legal acts: Celex > menu search > legislation > directives/regulations, not restricted to legislation in force, classification headings > 15 environment, consumers and health protection > 15.10 environment, without wrong classifications; non-binding legal acts: Eur-Lex > simple search > legislation > other acts, not restricted to acts in force, classification headings > 15 environment, consumers and health protection > 15.10 environment. The items that have been counted are declarations, conclusions, resolutions and recommendations that are not wrongly classified.

Figure 5.3 Evolution of legal instruments in EU environmental policy, 1970–2006



Source: As Figure 5.3.

Figure 5.4 Comparative shares of different legal instruments in EU environmental policy, 1970–2006

Table 5.3 Modes of governance in EU social policy and EU environmental policy

	Interest intermediation	Modes of interaction	Policy instruments
EU social policy	Policy networks +++ Corporatism ++	Joint decision-making ++ Intergovernmental negotiation ++ Supranational centralization ++	Hard law ++ Soft law ++
EU environmental policy	Policy networks +++ Pluralism + Corporatism +	Joint decision-making +++ Intergovernmental negotiation + Supranational centralization +	Hard law +++ Soft law +

Notes:
Role of respective mode of governance is:
+ Weak.
++ Significant.
+++ Dominant.

they accounted for more than half of all policy outputs, while they never made up less than one-fifth of the policy outputs adopted each year. If the total amount of hard law, including amendments, extensions and application rules, is considered, the share of binding legal acts is overwhelming. During the period, soft law usually accounted for less than one-third of the policy outputs adopted each year. Only in 1975 and in 1978 were more non-binding policy outputs than binding legal acts passed.

5 PATTERNS OF GOVERNANCE IN TWO POLICY AREAS: TOWARDS AN EXPLANATION

The previous sections have demonstrated that EU social policy and EU environmental policy are characterized by different mixes of governance modes. The governance modes of each dimension identified in the two policy areas are summarized in Table 5.3. The dominant form of governance in EU environmental policy may be described by the Community method, which combines interest intermediation in policy networks, joint decision-making between the Commission, the European Parliament

and the Council of Ministers on the basis of QMV, and goal attainment through hard law. In EU social policy, the modes of governance are more diverse. In addition to the Community method, policy-making also takes place in the context of the OMC, which combines interest intermediation through policy networks, intergovernmental negotiation and the adoption of soft law. A number of important issue areas in EU social policy thus still require unanimity in the Council, while the largest part of issues in environmental policy may be adopted on the basis of QMV. Soft law is more important in social policy than in environmental policy, and corporatist forms of interest intermediation play a more significant role in social policy than in environmental policy.

How can we explain these patterns and the way they emerged? The fact that corporatist forms of interest intermediation are more important in EU social policy than in EU environmental policy seems to mirror domestic traditions in both policy areas. In all countries that have traditions of corporatism, social policy is the prime policy area where this mode of tripartite concertation has come to fruition. Trade union and employers' organizations thus also belong to the oldest and best-organized interest associations at the European level (Eising, 2001). Interest intermediation in environmental policy, by contrast, has seldom been marked by corporatist structures, although countries such as Germany have a certain tradition of regulation through voluntary agreements concluded by industrial associations (Töller, 2004: 11).

Explaining why integration has gone further in the environmental policy field in terms of both decision-making rules and binding policy outputs, reveals a more fundamental variation between the two policy areas. At first sight, the competences and decision-making procedures in both policy areas developed in remarkably similar ways. Originally, Community action in both areas had to rely mostly on the subsidiary competence provisions of the treaties, which required unanimous agreement among member state governments. Explicit legislative competences and decision-making by qualified majority voting were expanded in the context of the internal market programme. Environmental policy was largely communitarized in the Single European Act, while the major reforms of the treaty provisions in social policy were effectuated through the Maastricht Treaty. Functional arguments in favour of more effective European cooperation met with less resistance in environmental policy, where proponents could argue that European action was necessary to combat transborder pollution and that the replacement of the multitude of national regulative schemes by a Europe-wide regulatory framework would provide a 'level playing field' for companies and would thus be beneficial for completing the internal market.

In social policy, the internal market programme also induced a pro-integrative dynamic. However, those who argued that the internal market needed to be accompanied by an effective social dimension in order to avoid social dumping – mostly trade unionists, left-wing politicians from countries with a high standard of living and the Commission under Jacques Delors – met with fierce resistance, especially by the Conservative British government, who rejected European social policy both on ideological grounds and because of the expected costs for the UK. Moreover, almost all member state governments have been defending their autonomy with regard to regulating core areas of the welfare state, such as pensions, healthcare, unemployment benefits or other social security programmes. In EU social policy, therefore, the functional spillover from the internal market got stuck halfway owing to the political resistance by member state governments.

This variation in the integration dynamics reveals three major differences between the two policy areas. These differences account for the fact that the overall level of political conflict is higher in EU social policy than in EU environmental policy, and that environmental policy is thus further integrated both in terms of decision-making modes and in terms of binding legislative output.

1. *Domestic policy legacies are more diverse and institutionally more deeply rooted in social policy than in environmental policy*. The historical evolution of welfare states in Europe is closely connected to the process of nation-building, and welfare programmes are thus deeply entrenched in member state institutions (Alber, 1982; Esping-Andersen, 1990). This process has given rise to a diverse set of welfare-state regimes. These regimes vary significantly with regard to the organization of the respective social security systems (Flora, 1986–1987; Esping-Andersen, 1990, 1999; Castles, 1995; Ostner and Lewis, 1995; Ferrera, 1996) and in the shape of the respective domestic industrial relations models and employment rights regimes (Crouch, 1993; Ebbinghaus and Visser, 1997; Ferner and Hyman, 1999; Gold, 1993).

   Environmental policy is also marked by different domestic regulatory models. As Héritier and her collaborators (1996) have shown, European environmental policy-making has long been characterized by the conflict between the British model of immission control based on flexible standards and the German model of emission control through hierarchical command-and-control instruments. In overall terms, however, the diversity of domestic regulatory models is not as high as it is in social policy, and domestic environmental policy legacies

are considerably younger and less deeply institutionalized than social policy traditions. Environmental policy is a relatively young policy area at the domestic level as well: it did not begin to become institutionalized in European countries until the 1970s. At that time most member states, except the UK and Ireland, adhered to the German model of command-and-control instruments and emission-based standards. The differences have been further reduced since then. The UK and Ireland have gone a long way towards emission-based standards, while Germany and many other countries have increasingly complemented their tradition of command-and-control regulation with flexible instruments along the lines of the British model (Liefferink and Jordan, 2004; Jordan and Liefferink, 2004; Weale et al., 2000).

Given the relatively late institutionalization of environmental policy, moreover, many environmental policy issues put on the agenda at the European level concern phenomena for which many member states have not yet adopted any domestic regulations. All these factors suggest that the problem of domestic 'policy pre-emption' (Pierson and Leibfried, 1995: 22) by member states' regulatory traditions is significantly less severe in EU environmental policy than in EU social policy.

2. *In EU environmental policy, less conflict-prone types of regulation are more frequent than they are in EU social policy.* This argument refers to the distinction between product standards and process standards (Scharpf, 1999: 106–113). Product standards, regulating things such as machine safety, noise emission standards or the ergonomics of workplace equipment, may imply significant costs for industry. At the same time, however, both producers and member states have an interest in common product standards because they facilitate the marketing of the products concerned throughout the internal market, which would be hampered if a producer had to comply with a patchwork of diverse national standards. In this sense, product standards are less conflict-prone and thus easier to adopt than process standards such as provisions on maximum working hours or information rights for trade unions, which impose costs on companies without creating market benefits. Our data suggest that product standards are more frequent in environmental policy than they are in social policy. If we break down the field of environmental policy into individual issue areas and look at those where most product-related laws are to be expected, we see that the issue areas of noise pollution, chemical safety, industrial safety and biodiversity make up one-third of all binding policy outputs. Further product standards are to be expected in other issue areas such as the monitoring of atmospheric pollution and waste management. In the field of social policy, in contrast, the

only issue area where we should find product standards is occupational safety and health, which accounts for about a quarter of all binding legislation in EU social policy.

3. *Domestic electorates are significantly more favourable towards regulating environmental issues at the European level than towards transferring social policy competences to the European level.* As Eurobarometer data shows, the vast majority of EU citizens want environmental issues to be tackled at the European level, while an equally vast majority deem welfare issues to be a domestic domain (Kritzinger, 2005: 58–63). Against this background, member state governments have little reason to support EU-level regulation of social policy issues, whereas expanding EU environmental policy is fully legitimated by domestic constituencies. Although everyday policy-making at the EU level usually does not enter into domestic election campaigns, these results underline that governments will have little problem defending EU environmental standards at home, while they will have a hard time convincing their domestic electorates of common European action in social policy.

These three factors are the reason why member states were willing to transfer a wide range of environmental competences to the European level and why they also accepted majority voting in almost all issue areas of environmental policy, while member state resistance has ensured that important issues in social policy still remain in the exclusive hands of domestic governments, are subject to unanimity or may only be tackled through soft, non-binding modes of governance. Similarly, these factors explain why EU law-making in environmental policy proceeded more smoothly than it did in social policy. The overall lower level of conflict in environmental policy facilitated the adoption of a higher number of binding policy outputs even before QMV was introduced. Social policy, in contrast, is marked by a lower number of overall policy outputs, and in the absence of sufficient political will among member state governments, it has seen a more frequent recourse to more autonomy-protecting soft-law instruments.

In the end, our explanation is an intergovernmental one. This does not mean, however, that we reject the pro-integrative role of the European Commission and the European Court of Justice or the growing impact of the European Parliament. Instead, we argue that these influences are relatively similar in our two policy areas, which means that they cannot account for the differences in the evolution of modes of governance. What remains as an explanation is the different integration preferences of member state governments. Again, the differences in government

preferences in the two policy areas cannot be explained by factors such as party political ideologies, since these either should be relatively similar (if we think about general stances towards European integration) or should not be stable enough over time (if we think about left–right politics). Instead, we argue that the differences between EU social policy and EU environmental policy may be put down to relatively stable structural features of both policy areas: differences in the level of long-term institutional entrenchment of domestic policy legacies, in the types of standardization problems dealt with and in popular support for further European integration at the domestic level.

NOTES

1. The distinction between intergovernmental negotiation and the joint-decision mode is based on our own (re)interpretation of Scharpf's writings, as the line he draws between the two modes is not quite as sharp as it could be. In our view, it is unclear whether Scharpf sees the type of decision rule that is applicable in the Council as the decisive criterion, as we suggest above, or whether the role of the Commission, the Court and the European Parliament is more important. At any rate, he is unclear about whether those areas within the First Pillar where the Council decides by unanimity belong to the mode of intergovernmental negotiation, as the decision rule is the same as in the Second and Third Pillars (Scharpf, 2001: 9; 2006a: 847–9), or whether these areas have to be subsumed under the joint-decision mode, as the role of the Commission and the European Parliament is much more important here than outside the First Pillar (Scharpf, 2006b: 12). We have opted for the first alternative as we think the actual negotiation dynamics are determined much more by the decision rule in the Council than by the formal role of the supranational institutions.
2. This was laid down in the so-called subsidiary competence provisions. Laws in the member states which 'directly affect the establishment or functioning of the common market' could be approximated by a unanimous Council decision on the basis of a Commission proposal (Art. 100 EEC Treaty). The Treaty also stipulated that in so far as 'action by the Community should prove necessary to attain, in the course of the operation of the common market, one of the objectives of the Community, and this Treaty has not provided the necessary powers, the Council shall, acting unanimously on a proposal from the Commission and after consulting the European Parliament, take the appropriate measures' (Art. 235 EEC Treaty).

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The Dynamics of Change in EU Governance

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